justice had made a public statement – in the context of the Keshav Singh case – that no single institution should have custodianship of the Constitution, and that the Constitution itself was the supreme law of the land.[8] This started conversations within government about whether the chief justice leaned in favour of the high court judges and a discussion on objecting to his presence on the bench hearing the case. That course was ultimately avoided, as it was recognized that it would not be wise to develop a further confrontation within the existing confrontation.

Since this case involved matters of principle that extended beyond the state of Uttar Pradesh, the Supreme Court issued notices of hearing to all high courts and state assemblies. As expected, several prominent advocates were on display at the Supreme Court. The greatest constitutional scholar of the time, H.M. Seervai, represented the Uttar Pradesh Assembly. He was assisted by Tehmtan Andhyarujina, who would later become solicitor general of India. Andhyarujina later said that over two months were spent preparing the case, which included a thorough review of cases from England, Australia and the United States.[9] The high court judges were represented by M.C. Setalvad, himself a distinguished advocate and former attorney general of India. (Setalvad's representation turned out to be pro bono by accident, prompted by a dispute over his fee with the state government, which was meant to foot the judges' legal expenses.[10])

Finally, the stage was set for one of the most fascinating cases during Nehru's tenure. The Supreme Court was conscious that although the dispute involved a high court and legislative assembly, the implications of the decision would extend to Parliament and the Supreme Court itself. In Chief Justice Gajendragadkar's words, the objectivity of the court's approach was 'on trial'.[11] He announced the court's intention to uphold its obligation to faithfully interpret the Constitution, regardless of outcome:

> If ultimately we come to the conclusion that the view pressed before us by Mr. Setalvad for [the] High Court is erroneous, we would not hesitate to pronounce our verdict against that view. On the other hand, if we ultimately come to the conclusion that the claim made by Mr. Seervai for the House cannot be sustained, we would not falter to pronounce our verdict accordingly. In dealing with problems of this importance and significance, it is